

# Amendment Procedure & Basic Structure

Article 368 pathways and Kesavananda doctrine — perennial high-weight theme.

Portion focus ~45% · Topic: polity-const

PYQ themes: Art 368 · Basic structure · Judicial review

## Why UPSC asks this

Tests understanding of constitutional change limits — conceptual, not rote article spam.

## How amendment works

Simple special majority; some provisions need state ratification (federal features). Know that amendment is not unlimited legislative power.

## Basic structure

Court identifies essentials that Parliament cannot destroy via 368. List illustrative features; remember doctrine evolved through Indira Gandhi election case, Minerva Mills, etc.

## Must remember

- Kesavananda Bharati (1973) — basic structure
- Examples often cited: supremacy of Constitution, judicial review, federalism, secularism, free & fair elections
- 42nd/44th amendments political context

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